

Legal and Tactical Analysis of Debt Recovery: Claim Against GPUcomputer

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Liability Profile of the Sole Proprietorship and the Individual

Under Polish law, a sole proprietorship, known as *jednoosobowa działalność gospodarcza* (JDG), is not a distinct legal entity separate from the natural person who registers it.¹ Operating under the trade name GPUcomputer Mateusz Szklarski, registered under NIP 8661681248, is legally equivalent to operating under the personal name of Mateusz Szklarski.¹ Consequently, there is no legal separation between business assets and personal assets.³ Under the provisions of the Polish Civil Code (*Kodeks cywilny*), particularly those regarding economic activity and contractual performance, the individual owner bears personal, unlimited, and joint liability with their entire estate for all obligations incurred under the trade name.¹

This unlimited liability profile means that any enforcement action initiated by a court bailiff (*komornik sądowy*) can target personal bank accounts, personal real estate, private motor vehicles, personal savings, and any other rights or assets owned by Mateusz Szklarski.³ This personal liability remains fully intact even if the debtor decides to formally close, liquidate, or deregister the business from the Central Registration and Information on Business (CEIDG).⁷ Deregistration does not extinguish outstanding liabilities; it merely shifts the character of the debt from commercial to purely private, allowing the creditor to pursue the natural person through the same judicial and enforcement channels indefinitely.⁷

The scope of enforceable assets is further influenced by the matrimonial property regime of the debtor, governed by the Polish Family and Guardianship Code (*Kodeks rodzinny i opiekuńczy*).¹ If the debtor is married under the statutory joint property regime (*wspólność ustawowa*), the creditor's enforcement capabilities depend on spousal consent.¹

Matrimonial Regime Context	Legal Basis & Scope of Enforcement	Impact on 155,000 PLN Claim
Spousal Consent Obtained	Article 41 § 1 KRO: Enforcement can be directed at both the personal assets of the debtor and the joint marital estate. ¹	Broadest enforcement path; targets shared real estate, family vehicles, and joint bank accounts. ¹

No Spousal Consent / Business Debt	Article 41 § 2 KRO: Enforcement is restricted to the debtor's personal assets, salary, and assets constituting the business enterprise. ⁸	Limits enforcement; joint marital assets (e.g., a shared matrimonial home) are shielded from immediate execution. ⁸
Marital Separation (Intercyza)	Article 47 KRO: Post-agreement debts are individual; effective against creditors only if they were notified prior to contract execution. ⁸	If executed within one year of bankruptcy, the separation of assets is legally ineffective against the bankruptcy estate. ¹⁰

Comprehensive Evaluation of the Electronic Writ of Payment (EPU) Proceeding

The creditor filed an EPU claim on April 8, 2026, under case number Nc-e 552126/26, demanding the principal amount of 155,000 PLN plus statutory delay interest from March 31, 2026, and paid a court fee of 1,938 PLN.¹¹ As of May 21, 2026, the status remains *Wpływ / Zadekretowano - Nowa*. This lack of movement over approximately six weeks is entirely standard for the VI Civil Division of the District Court Lublin-Zachód, which is the sole e-sąd in Poland.¹³ This court handles approximately 200,000 new lawsuits per month, resulting in administrative backlogs.¹³ The status *Zadekretowano - Nowa* indicates that the lawsuit has been formally registered and assigned to a judicial clerk (*referendarz sądowy*) but has not yet undergone substantive review.⁴

Recent structural reforms to the Polish Code of Civil Procedure (*Kodeks postępowania cywilnego* - KPC) have transformed the EPU framework, particularly regarding how the court handles delivery issues and debtor oppositions.¹⁶

Under Article 505(36) KPC, if the debtor files an opposition (*sprzeciw od nakazu zapłaty*) within the statutory 14-day window from delivery, the payment order immediately loses its force.¹⁶

Unlike the historical system where the e-sąd automatically transferred the entire case file to a court of general jurisdiction, the e-sąd is now legally mandated to **discontinue (umorzyć) the proceedings**.¹⁶

Following discontinuation, the creditor must file a completely new, traditional civil lawsuit in the ordinary court within **three months** to preserve the original filing date of April 8, 2026.¹⁵ If this three-month window is met, the court fee of 1,938 PLN paid in the EPU is credited toward the new lawsuit fee.¹⁵ If the creditor misses this deadline, the legal effects of filing (including the interruption of the limitation period and the calculation of interest) are lost.¹⁵

Furthermore, the reform has strictly curtailed the abuse of fictional delivery (*awizo*).¹⁶ Under Article 505(34) § 1 KPC, a payment order is only deemed delivered after two notifications if the

delivery address is identical to the debtor's address registered in the national PESEL database.¹⁶ If delivery fails due to an incorrect address or address mismatch, the e-sąd will set aside (*uchylić*) the payment order and discontinue the proceedings, unless the creditor provides the correct PESEL-aligned address within a strict one-month deadline.¹⁶

Procedural Stage	Expected Timeframe	Cost Implications	Tactical Action Required
EPU Registration to Issuance	1 to 3 months ¹³	1,938 PLN paid ¹²	Monitor court portal weekly for status changes. ⁴
Service of Order to Debtor	2 to 4 weeks ¹⁵	Postal costs covered by court fee	Verify debtor's address against the PESEL registry. ¹⁶
Opposition Window	14 calendar days from delivery ¹⁸	0 PLN for debtor ¹⁵	Prepare traditional lawsuit draft in anticipation of opposition. ¹⁹
Discontinuation Order	2 to 4 weeks after opposition ¹⁵	Each party bears own costs ¹⁹	Await formal written discontinuance notice. ¹⁵
Filing Traditional Suit	Within 3 months of discontinuance ¹⁵	EPU fee credited ¹⁵ ; must pay 5,812 PLN supplement	File full civil suit with the Regional Court in Kraków. ²⁰

Restructuring and Bankruptcy Proceedings under Polish Law

The debtor's claim of having "filed for bankruptcy protection" must be evaluated against the fact that a comprehensive search of the National Debtors Register (*Krajowy Rejestr Zadłużonych* - KRZ) on May 21, 2026, yielded no records.²²

Under Polish law, this lack of results confirms that **no insolvency or restructuring proceeding has been formally opened** by a bankruptcy court.²² However, it remains possible that the debtor has submitted a petition that is currently awaiting review, as there is often an administrative delay of several weeks before the court registers a petition and publishes the appointment of a temporary judicial supervisor (*tymczasowy nadzorca sądowy*).²⁴

If the debtor is pursuing restructuring, they are likely attempting a Proceeding for Approval of an Arrangement (*postępowanie o zatwierdzenie układu* - MPOU) under the Polish Restructuring Law.²⁵ This proceeding is initiated out of court by concluding a contract with a licensed restructuring advisor acting as the supervisor of the arrangement.²⁶ The protective effects of the MPOU begin upon the publication of the arrangement day (*dzień układowy*) in the KRZ.²⁶

Proceeding Type	Impact on EPU & Civil Claims	Impact on Active Bailiff Enforcement	Creditor Action Required
Approval of Arrangement (MPOU)	Civil litigation can continue to obtain a judgment; cannot execute on the judgment. ²⁷	Active enforcement of debts covered by the arrangement is suspended by law for up to 4 months. ²⁵	Monitor arrangement terms; vote on the proposed reduction or repayment schedule. ²⁶
Sanation (<i>Sanacja</i>)	Litigation regarding the estate is suspended until the administrator is entered. ²⁹	All enforcement actions against the sanation estate are suspended and new ones are prohibited. ³⁰	Register claim in the restructuring register via the KRZ. ³¹
Bankruptcy (<i>Upadłość</i>)	The EPU proceeding is suspended by law. ²⁹ The creditor cannot initiate new civil lawsuits. ²⁹	All active bailiff executions are suspended on the declaration date and discontinued upon finality. ²⁹	Register the claim (<i>zgłoszenie wierzytelności</i>) electronically via the KRZ portal. ³¹

Should the debtor be declared bankrupt, the creditor cannot pursue individual enforcement.²⁹

The creditor must register the claim (*zgłoszenie wierzytelności*) through the KRZ portal.³¹

The filing must be executed electronically and follow the correct digital pathway based on the debtor's operational status: "Upadłość przedsiębiorcy" if the JDG is active, or "Upadłość konsumenta" if the business has been closed.³²

The registered claim must include the principal amount of 155,000 PLN, plus interest calculated up to the day *before* the formal declaration of bankruptcy.³³

Under Article 235 of the Polish Bankruptcy Law, claims submitted within **30 days** of the bankruptcy announcement are free of charge.²⁹

If the creditor registers the claim after the 30-day deadline, the submission is valid but subject

to a mandatory, non-refundable administrative late fee.²⁹ This fee is equivalent to 15% of the average monthly wage in the enterprise sector for the third quarter of the preceding year.²⁹ For the year 2026, this late fee is exactly **1,327.71 PLN**.³⁵

Strategic Security Actions and Criminal Recourse

Civil Claim Security (*Zabezpieczenie Roszczenia*)

The ongoing EPU proceeding does not offer any immediate protection against the dissipation of the debtor's assets.³⁶ An EPU payment order, unlike a payment order issued under the distinct writ-of-payment proceeding (*postępowanie nakazowe*), does not constitute an automatic security title (*tytuł zabezpieczenia*) under Article 492 KPC upon issuance.¹¹ To protect the 155,000 PLN before the debtor relocates assets or enters bankruptcy, the creditor should file a separate motion for security of claims (*wniosek o zabezpieczenie roszczenia*) under Article 730 KPC.²¹

Because the claim exceeds the 100,000 PLN threshold, subject-matter jurisdiction lies with the Regional Court (*Sąd Okręgowy*).⁴⁰ The local court of competent jurisdiction based on the debtor's registered business seat in Kraków is the **Regional Court in Kraków** (*Sąd Okręgowy w Krakowie*).²¹ Under Article 730(1) § 1 KPC, the creditor must satisfy two cumulative requirements:

1. **Uprawdopodobnienie Roszczenia (Proving the Claim):** The creditor has exceptional documentary evidence that easily meets this threshold.²¹ The email thread showing the order, the proforma invoice nr 2/01-2026, the bank transfer proof, the debtor's written acceptance of the refund on March 2, the refund deadline commitment of March 10, and the delivered pre-court demand of March 19 establish a highly credible claim.²¹
2. **Interes Prawny (Legal Interest):** The creditor must show that the lack of security will make it impossible or extremely difficult to execute a future judgment.²¹ The debtor's written admissions of supplier bankruptcy, their claims of seeking bankruptcy protection, and their failure to make any repayments despite multiple promises provide clear, objective proof of a severe threat of asset dissipation.²¹

The motion must state the "sum of security" (*suma zabezpieczenia*) under Article 736 § 3 KPC, which should encompass the 155,000 PLN principal, accrued statutory delay interest from March 31, 2026, and the projected court and legal representation costs.³⁹

The court fee for this motion is a flat rate of 100 PLN if filed in the course of an ongoing case.²⁰ If filed as a pre-trial motion before a formal civil suit is launched, the fee is 1/4 of the standard lawsuit fee, which is subsequently credited toward the fee of the main lawsuit.²¹

Once granted, the court issues a security order, which is automatically enforceable by a bailiff to freeze the debtor's bank accounts and place a compulsory mortgage (*hipoteka przymusowa*) on their real estate.¹¹

Criminal Liability for Fraud (Art. 286 § 1 KK)

The creditor must evaluate whether the debtor's conduct constitutes criminal fraud (*oszustwo*) under Article 286 § 1 of the Polish Criminal Code (*Kodeks karny* - KK).⁴⁶

Recent Supreme Court (*Sąd Najwyższy*) jurisprudence, notably reaffirming principles through late 2025, emphasizes a strict divide between civil non-performance and criminal fraud.⁴³ The failure to deliver hardware or return an advance payment is classified as a civil breach of contract under Article 471 KC, unless the prosecution can prove the debtor acted with direct, purposeful intent (*zamiar bezpośredni kierunkowy*) to defraud at the exact moment the contract was formed.⁴³

If the debtor genuinely intended to purchase the hardware, but their plans were derailed by the subsequent bankruptcy of their Hong Kong supplier, the required criminal intent is absent, making the matter strictly civil.⁴³

However, criminal fraud is established if evidence shows that:

- The debtor knew the Hong Kong supplier was already bankrupt or unable to deliver before accepting the 155,000 PLN in January 2026, yet concealed this fact to secure the funds.⁴⁷
- The debtor had no financial liquidity and used the creditor's funds to pay off prior, unrelated business debts, knowing they could not fulfill the workstation order.⁴⁹
- The debtor engaged in a systemic pattern of taking advance payments from other clients without delivering any goods.⁴³

Filing a criminal complaint with the District Prosecutor's Office in Kraków can be a powerful tactical lever. If the debtor is indicted and subsequently convicted of fraud, the criminal court is authorized under Article 46 § 1 KK to issue a mandatory damage repair order (*obowiązek naprawienia szkody*).⁵²

This order serves as an enforceable civil title.⁵⁴ Under Article 491(21) of the Bankruptcy Law, any liability resulting from an intentional crime is completely excluded from debt discharge in both consumer and business bankruptcy.⁵⁵ A criminal conviction ensures that the 155,000 PLN debt will survive any bankruptcy proceeding intact, remaining enforceable against the debtor for life.⁵⁵

Tactical Action Plan and Options Matrix

To navigate this dispute, the creditor has four distinct tactical options, which should be executed in parallel rather than as mutually exclusive paths:

Strategic Options	Procedural Mechanism	Cost Profile	Advantages	Risks & Disadvantages
Option A: Await EPU Order	Maintain the current EPU filing under Case Nc-e	Already paid 1,938 PLN. ¹²	Low administrative effort; cost-efficient if	High probability of debtor opposition,

	552126/26. ⁴		the debtor fails to file an opposition. ¹²	which discontinues the case and causes a 3-month delay. ¹⁵
Option B: Immediate Security Motion	File a motion for claim security directly with Sąd Okręgowy w Krakowie. ²¹	100 PLN court fee ²⁰ plus bailiff execution fees. ²¹	Instantly freezes bank accounts and places mortgages on real estate before bankruptcy is declared. ²¹	Requires proving the legal interest; risk of the debtor filing for bankruptcy which suspends the security. ²¹
Option C: Criminal Prosecution	File a formal complaint for fraud under Art. 286 § 1 KK with the Kraków Prosecutor. ⁴⁶	0 PLN in court fees. ⁵³	Creates intense personal pressure on the debtor; bypasses bankruptcy discharge via Art. 46 KK. ⁵³	High burden of proof; prosecutor may dismiss the case as a purely civil contractual dispute. ⁴³
Option D: Active KRZ Monitoring	Set up daily NIP alerts on the public KRZ portal. ²²	0 PLN. ²²	Ensures the creditor does not miss the 30-day window for free claim registration. ²⁹	Entirely passive; does not actively advance the recovery of funds.

Recommended Action Plan

The creditor should immediately adopt a multi-tracked litigation strategy:

1. **Engage Kraków-Based Legal Counsel:** Retain a local attorney to conduct an immediate, professional asset-tracing investigation (targeting land registers, company registries, and active bank accounts of Mateusz Szklarski).²¹
2. **File the Motion for Security of Claims:** Submit the motion to the Regional Court in Kraków without waiting for the EPU order.²¹ The motion should request the freezing of

Szklarski's personal and business accounts up to the sum of security.²¹

3. **Prepare the Traditional Civil Lawsuit Draft:** Do not wait for the EPU process to finish. The debtor is highly likely to file an opposition to delay execution.¹⁵ Prepare the full civil lawsuit so it can be filed with the Regional Court in Kraków the moment the e-sąd issues its discontinuation order under Article 505(36) KPC, thereby preserving the original April 2026 filing date.¹⁵
4. **Lodge the Criminal Complaint:** File the zawiadomienie with the Kraków District Prosecutor.⁴⁷ Frame the complaint around the debtor's financial status in January 2026, arguing they accepted the 155,000 PLN knowing they lacked the liquidity to deliver or refund the money.⁴⁹
5. **Maintain Daily KRZ Surveillance:** Continue daily monitoring of NIP 8661681248 in the KRZ portal.²² If a bankruptcy or restructuring proceeding is opened, immediately register the claim through the online portal to secure creditor rights within the 30-day free window.²⁹

Risk Assessment and Recovery Scenarios

To assist the creditor in financial planning, the realistic recovery scenarios are analyzed below:

Recovery Outcome	Key Prerequisites	Realization Probability	Expected Duration	Primary Obstacles
Full Recovery	The security motion is granted swiftly; the bailiff freezes cash reserves or secures real estate before a bankruptcy petition is filed. ²¹	Low to Medium (20% - 30%)	6 to 12 months	Immediate declaration of bankruptcy by the debtor, which would nullify individual civil execution. ²⁹
Partial Recovery	The debtor enters bankruptcy; the trustee liquidates the estate, distributing	Medium (40% - 50%)	18 to 36+ months	Highly depleted estate; high volume of prioritized institutional debts (e.g.,

	proceeds proportionally to Class II/III creditors. ²⁹			Social Insurance Institution - ZUS, Tax Office). ⁵⁶
Zero Recovery	The debtor has no assets, the business is closed, and the criminal complaint is dismissed as a civil matter. ⁴³	Low to Medium (20% - 30%)	Indefinite	Total lack of personal or business assets; successful bankruptcy discharge. ⁷
Long-Term Recovery via Criminal Ruling	The debtor is convicted of fraud; an Art. 46 KK order is issued, bypassing bankruptcy and allowing lifelong enforcement. ⁵²	Low to Medium (25% - 35%)	24 to 48 months	High evidentiary standard required to prove criminal intent at the time of contract execution. ⁴⁷

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